Board Policy 1.70.011-P

Board Meetings and Protocol

I. Except during executive sessions, all regular and special meetings of the Board ~~shall~~ will be open to the press and to the public.

~~Members of the public and school staff may make presentations at meetings, in accordance with 1.70.012-P, Presentations by Citizens and Employees.~~

II. A regular meeting of the Board may include a Business Session, a Work Session or an Executive Session.

A. Business Session. Business sessions ~~will~~ afford the opportunity to consider and act upon proposed policies and resolutions concerning PPS~~the~~ business ~~of the district~~.

B. Work Session. Work sessions are~~shall be~~ held in the Committee-of-the-Whole and ~~shall~~ provide the Board with the opportunity to:

i. Hear presentations and recommendations from members of the Board or from the ~~s~~Superintendent or their~~his/her~~ designated representatives on school programs, problems or other matters;

ii. Secure needed information and conduct discussions, as necessary, on matters to be considered for Board action;

iii. Hear presentations from members of the community or school staff on any matter~~s~~;

iv. Vote on issues brought to the Board for Committee-of-the-Whole discussion. Votes on resolutions taken in the Work Session ~~shall without further motion be taken and shall be~~ are the final action of the Board and will ~~shall~~ be recorded in the minutes of the meeting.

C. Executive Session. Executive sessions may be held during a regular, special or emergency meeting immediately following identification by the Board Chair or acting Chair ~~other presiding officer of the meeting~~ of the subsection of ORS 192.660~~, which~~ that authorizes the executive session ~~to be held~~. Executive sessions will ~~shall~~ be conducted in a manner consistent with state law.

III. Meeting Agenda

A. Agenda items for general discussion, presentation, reports, etc., will be established jointly by the Board ~~c~~Chair and the ~~s~~Superintendent. Requests for placing such items on the agenda will~~shall~~ be submitted to the Board office.

B. Business agenda items will be compiled by the Board office for formal consideration by the Board.

C. The Board office will deliver ~~A~~an agenda for regular Board meetings ~~shall be delivered~~ to members of the Board in a timely manner prior to the meetings.

D. A copy of the agenda of the regular Board meeting ~~shall~~will be posted on PPS's

website before the meeting.~~available in the Board office on the morning of each scheduled meeting day~~. The agenda will list the principal subjects anticipated to be considered at the meeting, but the Board may consider additional subjects, as needed.

IV. Dates of ~~m~~Meetings:

A. Regular Meetings. The Board's meeting schedule will be established by the Board Chair by July 1 each year ~~at the July organizational meeting~~ but may be changed ~~by the Board~~ with proper notice.

B. Special Meetings. A special meeting of the Board may be called upon the order of the ~~c~~Chair or upon the request of three members of the Board. Written ~~N~~notice of such meeting will~~shall~~ be issued ~~to all Board members by the Office of Board Services, in writing, of such meeting~~ at least 24 hours before the meeting is to be held.

C. Emergency Meetings. In case of actual emergency, ~~A~~an emergency meeting of the Board may be held ~~at any time~~ without 24-hour notice at the request of the Board Chair or the Superintendent. Notice of the meeting will specify the nature of the emergency and indicate the time and place at which the emergency meeting will be held. ~~by common consent of the members of the Board, provided such consent shall be in writing subscribed by all members of the Board and shall specify the date and place at which the special meeting shall be held.~~ The minutes of the meeting will describe the nature of the emergency justifying less than 24 hours' notice. No business other than that related to the emergency will be discussed at an emergency~~these~~ meeting~~s~~.

V. Meeting Protocol

A. Official action of the Board is ~~shall be~~ transacted by a motion and resolution and ~~shall~~ require~~s~~ affirmative votes of a majority (four) of all Board members in order to be enacted.

B. The ~~c~~Chair ~~shall~~ decide~~s~~ all questions relative to points of order, according to the policies and protocols of the Board, subject to appeal of the Board.

C. After a motion has been made, any member may raise an objection on the grounds that such a motion is in violation of existing policies or protocols. The ~~c~~Chair ~~shall~~ will rule on such objection, and if their~~his/her~~ ruling is not accepted by any member, such member can appeal from the ruling of the ~~Board c~~Chair.

D. During the proceedings of a Board meeting, a member may signify their~~his/her~~ intention to submit at a later time a statement relative to an item considered at that meeting. At the request of the member, such statement will~~shall~~ become a part of the official record of the meeting.

E. At the request of any Board member, the ~~c~~Chair will~~shall require the secretary to~~ call the roll and ~~to~~ record the "ayes" and "nays" on any motion or resolution. The ~~c~~Chair or acting ~~c~~Chair may vote on any motion.

F. No action will~~shall~~ be taken at any Board meeting on items authorizing an expenditure of money~~,~~ unless the recommendation for such expenditure appears in preliminary agendas for that meeting; ~~provided,~~ however, ~~that~~ in an emergency, this provision may be waived by unanimous consent.

G. No action will be taken by the Board on proposals by members of the audience at the same meeting at which such proposals have been made, so~~in order~~ that appropriate

study may be made and the ~~s~~Superintendent's recommendations may be obtained.

H. In matters of parliamentary procedure not covered by these rules ~~and regulations~~, provisions of Robert's Rules of Order Newly Revised will~~shall~~ prevail.

VI. Public Comment

A. Members of the public may be invited to share comments with the Board during designated times on the agenda. Public comment is limited to its designated place on the agenda and while time allows, as determined by the Board Chair. The Board may conduct a meeting without public comment.

B. Public comment may be provided orally or in writing, by those attending in-person or virtually.

C. A person giving public comment will be limited to the time limit established by the Board chair. Time cannot be shared or given to another person.

D. The Board will not answer questions submitted during public comment at a Board meeting. A Board member or PPS staff may follow up after the meeting.

VII. Minutes

A. PPS~~The district~~ will~~shall provide for the taking of~~ take written minutes of all Board meetings~~, except executive sessions~~.

B. Minutes of Board meetings, other than minutes of executive sessions, will ~~shall~~ be posted in a manner~~,~~ which permits public access.

~~C. The public shall be given, on appointment and during the normal hours of business, access to any Board records, which are regarded as public records not otherwise considered exempt from disclosure by state law.~~

Legal References: ORS 192.610 to 192.705~~710~~; ORS 332.045; ORS 332.055; ORS 332.057; ~~Opinions of the Attorney General, Vol. 38, p. 1995 (1978); Opinions of the Attorney General, Vol. 41, p. 28 (1980)~~

History: Adopted 6/71; Amd 8/73; Amd 9/80; Amd 9/9/02; BA 2417

BDD - Board Meeting Procedures

Code: BDD
Readopted: 4/24/17
Adopted: 1/30/07
Orig. Code(s): BDD

1. **Quorum**

   - A majority of the members of the Board must be present at a meeting in order to conduct business.
   - Four members of a seven-member board is a quorum.

2. **Vote Needed for Exercise of Powers**

   - The affirmative vote of a majority of Board members will be necessary for exercising any of the Board's powers. For a seven-member board, four affirmative votes are required.

3. **Board Member Voting**

   - Each member's vote on all motions will be recorded in the minutes.

4. **Abstaining From Vote**

   - If a Board member chooses to abstain from voting, such abstention will be recorded.
   - Board members abstaining due to an actual or potential conflict of interest must publicly state the conflict. Board members having a potential conflict may vote.

5. **Parliamentary Procedure**

   - Official Board business will be transacted by motion or resolution at duly called regular or special meetings.

The Board chair will decide all questions relative to points of order, subject to an appeal to the entire Board.

END OF POLICY

Legal Reference(s):
ORS 192.650
~~ORS 244~~.120(2)
~~ORS 332~~.045
~~ORS 332~~.055
~~ORS 332~~.057
~~ORS 332~~.107

38 Or. Atty. Gen. Op. 1995 (1978)
41 Or. Atty. Gen. Op. 28 (1980)

BDDH - Public Comment at Board Meetings

Code: BDDH
Readopted: 1/30/24
Adopted: 9/08/97
Orig. Code(s): BDDG

All board meetings, with the exception of executive sessions, will be open to the public. The board invites the district's community members to attend board meetings to become acquainted with the program and operation of the district. Members of the public also may be invited to share comments with the board during designated times on the agenda.

It is the intent of the board to ensure communications with individuals with disabilities are as effective as communications with others. Individuals with hearing, vision or speech impairments will be given an equal opportunity to participate in board meetings and submit comments to the board. Primary consideration will be given to requests of qualified individuals with disabilities in selecting appropriate auxiliary[1] aids and services. Auxiliary aids and services for persons with disabilities will be available at no charge to the individual. All auxiliary aid and/or service requests must be made with appropriate advance notice. Should the board demonstrate such requests would result in a fundamental alteration in the service, program or activity or an undue financial and administrative burden, an alternative, equally effective means of communication will be used.

Procedures for Public Comment at Meetings
The board will establish procedures for public comment in open meetings. The purpose of these procedures will be to inform the public how to effectively participate in board meetings for the best interests of the individual, the district and the patrons. The information will be easily accessible and available to all patrons attending a public board meeting.

1. Public comment is limited to its designated place on the agenda and while time allows, as determined by the board chair. The board may conduct a meeting without public comment.
2. When the board provides an opportunity for in-person attendees to provide oral or written public comment, a similar opportunity will be provided for virtual attendees.
3. Anyone wishing to speak before the board may request to do so by providing the board secretary with a completed request card or other established method for requests to speak, prior to the board meeting.
4. The board chair will determine the method for the selection and order of the speakers.
5. A person giving public comment will be limited to a time limit established by the board chair. Time cannot be shared or given to another person. Statements should be brief and concise.
6. A person speaking during the public comment portion of a meeting may comment on a topic not on the published agenda.
7. A person speaking to the board during the public comment portion of a meeting should provide their name and whether they are a resident of the district, and, if speaking for an organization, the name and identity of the organization. The board prefers that a group designate a spokesperson to represent those with a common purpose.
8. If a person has more comments than time allows or is unable to comment due to time constraints, they may submit their additional comments to the board in writing through the district office as directed.
9. The board will not answer questions submitted during public comment at the board meeting. A board member or district representative may follow up after the meeting.

Criticisms of Staff Members
Speakers may offer objective criticism of district operations and programs, but the board will not hear complaints concerning individual district personnel. The board chair will direct the visitor to the appropriate means for consideration and disposition of legitimate complaints involving a staff member.

END OF POLICY

Legal Reference(s):
ORS 165.535
~~ORS 165~~.540
~~ORS 192~~.610 to -192.690
~~ORS 332~~.057
~~ORS 332~~.107

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213 (2012); 29 C.F.R. Part 1630 (2017); 28 C.F.R. Part 35 (2017).
Americans with Disabilities Act Amendments Act of 2008.
Baca v. Moreno Valley Unified Sch. Dist., 936 F. Supp. 719 (C.D. Cal. 1996).
Leventhal v. Vista Unified Sch. Dist., 973 F. Supp. 951 (S.D. Cal. 1997).

Cross Reference(s):
BDDC - Board Meeting Agenda

[1] Auxiliary aids may include, but are not limited to, such services and devices as qualified interpreters, assistive listening systems, note takers, readers, taped texts, Braille materials and large print.

SALEM•KEIZER PUBLIC SCHOOLS

BG-11

Board Operations

To accomplish its stated objectives, the board will govern in a consistent and efficient manner. Accordingly, at the first meeting held after July 1 of each year, and following, the board shall maintain the following practices:

1. Organize by electing a board chair and board vice chair.
   a. No member shall serve as board chair for more than two years in succession.
   b. For the remainder of the 2021-22 school year, elected board leadership will appoint a board member to serve as 2nd vice chair, who will serve in the work of board leadership.
   c. Beginning with the 2022-23 school year, the board will elect a 2nd vice chair, following election of the board chair and 1st vice chair.
   d. The 1st vice chair and 2nd vice chair may assume the duties of the board chair, and the 2nd vice chair may assume the duties of the 1st vice chair, as needed and in accordance with *BG-9 Board Chair's Role*.

2. Name an attorney for the school district whose primary function will be to provide direct, professional legal counsel and advice to the superintendent, staff, and the board on district matters.

3. Establish an annual meeting schedule:
   a. The schedule may be changed with proper notice.
   b. Special meetings may be held on the request of the board chair, or by mutual consent of the board members, or may be called by three members of the board serving written 24-hour notice on the other members, and the superintendent. Special meetings must be scheduled at least 24 hours in advance to allow for notification to the public and media.
   c. Emergency meetings may be held upon less than 24-hour notice as is appropriate to the circumstances and in accordance with Oregon Revised Statute. The minutes of such a meeting shall describe the justification for providing less than 24-hour notice to the public and the media.

4. Hold all board meetings within the geographic boundaries of the district.

5. Open all board meetings to the public and act on district business in an open meeting except as provided in Oregon Revised Statutes. Promote a safe, welcoming, inclusive, and accessible meeting environment by observing procedures outlined in Exhibit A – Meeting Behavior Management.

6. Allow for public comment at regular business meetings and at special meetings as needed. Establish procedures for public comment, with accessible instructions so the public is aware how to participate. Promote opportunity for public input and feedback to the board by observing procedures outlined in Exhibit B – Public Comment Process.

7. Vote on motions using "yeas" or "nays" and record the result of the vote.

8. Adhere to a majority vote requirement, which requires affirmative votes by a majority of the membership of the board (4 out of 7) be required to pass any motion before the board.

9. Allow for one presentation prior to voting on action items, except for emergency or routine items. This requirement may be waived at the discretion of board leadership.

10. Conduct a regular board meeting only if a majority of the board members are present (quorum).

11. Appoint and maintain a seven-member electors' budget committee as required by Oregon Revised Statute and utilize the majority vote requirement, which requires affirmative votes by a majority of the committee (8 out of 14) to pass any motion before the budget committee.

12. Annually, appoint a student advisor to the board as a non-voting member. The board may choose to appoint an additional student advisor, which may be determined by the number and qualification of candidates, anticipated need, or other pertinent criteria. The student(s) must have one year of experience on the district-led student equity committee/student advisory committee. To provide a respectful and positive student experience, the board will interview student candidates during one board meeting and take action to appoint the student advisor(s) during a subsequent board meeting. All student candidates must complete an application and participate in the interview conducted in the public meeting.

13. Designate the superintendent as the district school clerk.

Monitoring Method: **Board Self-assessment**
Monitoring Frequency: **Annually**

Salem-Keizer Public Schools does not discriminate on the basis of race, color, religion, sex, sexual orientation, national origin, marital status, age or disability in its programs and activities.

Exhibit A
Meeting Behavior Management

All board meetings, with the exception of executive sessions, will be open to the public, either in-person and/or virtually, in accordance with Oregon public meetings law. In accordance with Oregon Revised Statutes (ORS) 192.670, meetings may be held by virtual means only; meetings held where the public may attend in person will also have virtual access for the public. Community members are welcome to attend board meetings to become acquainted with the programs and operation of our schools, and to provide public comment when opportunity is available (see Exhibit B).

Purpose:
To ensure a productive, inclusive, safe and welcoming environment for meetings/events of the school board, district staff, students and families, and the public. To prevent behavior deemed by the board/district to disrupt the functioning of meetings/events or endanger the safety of anyone involved.

Practice:
Meetings are an essential part of school governance and district operations and shall be conducted in a way to ensure that all who participate have an opportunity to be heard, the interests of students are prioritized, and the best work of those assembled is produced. Individuals participating in any meeting/event occurring in association with the Salem-Keizer School District shall practice behavior that is aligned with the values of the district:

- Work will be done with care and respect
- Consider the impact of speech before communicating
- Listen to understand before seeking to be understood

If a person deviates from behavior expectations articulated within Exhibit A in a district meeting, the meeting chair or individual facilitating the meeting will take corrective action. Repeated attempts may be taken to bring a disruptive participant in a meeting to order. If such attempts are unsuccessful, then the disruptive individual may be asked to leave the meeting, or they may be removed from the meeting space and/or district property. The board chair may pause, recess, or adjourn meetings when safety of the meeting and attendees is compromised. Security or law enforcement may assist.

A person will be subject to immediate removal from a meeting space and/or district property if that person is observed to be engaged in any of the following types of behaviors:

- Fighting, threatening behavior, harassment, or behaviors outlined in ORS 166.023, 166.025, 166.065, or other corresponding ORS
- Conduct that is disruptive to the functioning of district meetings/events or business; making unreasonably loud or disturbing noise
- Damaging district property or vandalism
- Abusive, threatening, vulgar, or hate speech, including speech articulated on signs and clothing, which violate the district's harassment and/or Every Student Belongs policy
- Attempting to enter, entering or being in confidential, private, or unauthorized area without proper authorization
- Possessing a dangerous or deadly weapon pursuant to *Administrative Policy: Visitors to Schools and Campuses INS-A024*
- The violation of any court order or other legal authority, such as law enforcement

Exhibit B
Public comment Process

The board welcomes and values public comment, and members of the public are encouraged to share their ideas and opinions with the board. Opportunity for public comment may be available in person and/or online, depending on the structure of the meeting. In accordance with Oregon Revised Statutes (ORS) 192.670, meetings held where public comment is accepted in person will also have an avenue for virtual public comment. As public comment occurs within the meeting setting, public comment will not be allowed to disrupt the functioning of the meeting or endanger the safety of anyone involved (see Exhibit A).

Auxiliary Aids/Services for Persons with Disabilities: It is the intent of the board to ensure communications with individuals with disabilities are as effective as communications with others. Individuals with hearing, vision, or speech impairments will be given equal opportunity to participate in board meetings. Primary consideration will be given to requests of qualified individuals with disabilities in selecting appropriate auxiliary aids and services. Auxiliary aids and services for persons with disabilities will be available at no charge to the individual. All auxiliary aids or service requests must be made with appropriate advance notice. Should the board demonstrate such requests would result in a fundamental alteration in the service, program, or activity, or an undue financial and administrative burden, an alternative, equally effective means of communication will be used.

Purpose:
To provide information to the public about how to effectively provide public comment at board meetings, to give input and feedback to the board on items for which the board will be making decisions, and to share ideas and opinions with the board.

Practice:
Information and instructions for providing public comment are posted in a variety of ways, typically on the website, on the meeting agenda, and in the form patrons use to sign up for public comment. Though the sites listed in this policy may provide more detailed instructions, general procedures for public comment are as follows.

- Opportunity for public comment is confined to its designated place on the agenda, unless otherwise authorized by the board chair.
- Public comment will be accepted on agenda and non-agenda items. Depending on the structure of the meeting, public comment may be heard in person, by call-in, by virtual meeting platform, or by written submission.
- Individuals must sign up ahead of the meeting to provide public comment, using the means and within the timeline publicized for the meeting.
- Each person may sign up to provide public comment once during the meeting.
- For the record and identification and contact purposes, full name, email address, and city of residence (*not* specific residence address), and phone number may be required to sign up to give public comment to the board, though speakers do not necessarily need to state their full name when speaking.

- The board chair may determine the order of the speakers. Typically, comment is heard according to sign-up order, by action items, agenda topics, and then non-agenda items.
- The board chair may set a limit for individual public comment, as well as total time allowed for public comment. The board requests speakers observe common courtesies in order to hear from as many patrons as possible:
    - Be brief, concise, and stay within the allowable time limit (typically three minutes); additional time may be allowed for translation into English.
    - Choose a spokesperson to speak/represent a group with a common purpose.
    - Speak clearly and slowly so the board and public can hear your thoughts and language interpreters are able to accurately translate.
- The public may offer criticism of district operations and programs, but the board will not hear complaints concerning individual district personnel.
- Public comment is not to be used as a public forum to criticize individual community members.
- The board will not respond to public comment during the meeting; this is a time for the board to hear from the public.
- Individuals wanting to contact board members outside of public comment are encouraged to email the board using the link/contact information provided on the website.